		Plaintiff is ORDERED to serve responses without objections to the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents within 30 days. Sanctions are available on motions to compel responses to interrogatories and inspection demands. (Code Civ. Proc. § 2030.290(c), § 2031.300(c). ("The court shall impose a monetary sanction … against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response … unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").) Defendant seeks sanctions of $507 (2 attorney hours at $186/hour + 1 legal assistant hour at $75/hour + $60 filing fee) for each of the three motions, for a total of $1,521. This request is excessive, as no opposition was filed and much of the time spent was duplicative for the three motions. Plaintiff is ORDERED to pay monetary sanctions of $321 (1 attorney hour at $186/hour + 1 legal assistant hour at $75/hour + $60 filing fee) for each of the three motions, for a total of $963. Plaintiff shall pay the sanctions of $963 by July 16, 2026. Defendant shall give notice of this ruling.
4	9 Whatney, LLC v. Mayrock Automotive, Inc.	Plaintiff/Cross-Defendant 9 Whatney, LLC, and Cross-Defendant Hezy Shaked move to recover attorney's fees. The motion is CONTINUED to July 16, 2026, at 1:30 p.m. in this Department. A party moving to recover attorney's fees has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1020.) The Moving Parties argue they are entitled to fees under the 2022 Lease. (*See* Mot. at 9:1-18; Larson Decl., Ex. A.) Contractual attorney's fees are recoverable as costs. (Code Civ. Proc., § 1033.5(a)(10)(A).) Civ. Code Section 1717(a) provides that: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. . . . Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit." Any resolution of a contract action to enforce the agreement must be accompanied by an award of reasonable attorney fees to the prevailing party, regardless of the reason for the judgment. (*See Real Property Services Corp. v. City of Pasadena* (1994) 25 Cal.App.4th 375, 384 n. 7 [holding the prevailing defendant is entitled to recover fees where the nonsignatory plaintiff lacked standing to pursue the contract claim].)

A prevailing party in a contract action may recover reasonable attorney's fees incurred only in that party's defense of the covered contract claims. (*Hill v Affirmed Hous. Group* (2014) 226 Cal.App.4th 1192, 1197.) To the extent that shared counsel engaged in litigation activity on behalf of another defendant for which fees are not recoverable, the judge has broad discretion to apportion fees, even if the issues are connected, related, or intertwined. (*Zintel Holdings, LLC v McLean* (2012) 209 Cal.App.4th 431, 443.) Although timekeeping and billing procedures may make a requested segregation difficult, they do not make allocation impossible. (*Hill v Affirmed Hous. Group, supra*, 226 Cal.App.4th at p. 1197.) Nevertheless, allocation of fees incurred is not required when the claims at issue are inextricably intertwined, such that it is impossible to differentiate between time that is compensable and time that is not compensable. (*Ibid.*) For example, a court may exercise its discretion not to apportion fees between an LLC and its managing member where the defenses asserted by the LLC manager and the LLC were so interrelated that it would have been impossible to separate them into time units billed on behalf each represented party. (*See id.* at pp. 1197–1198.)

Here, the 2022 Lease provides for the recovery of fees by only parties or brokers to the 2022 Lease. Specifically, paragraph 31 of the 2022 Lease provides:

> If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract or equity, or to declare rights hereunder, <u>the Prevailing Party (as hereafter defined)</u> in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. . . . The term, "Prevailing Party" shall include, without limitation, a Party or Broker who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other Party or Broker of its claim or defense. The attorneys' fees award shall not be computed in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred. In addition, Lessor shall be entitled to attorneys' fees, costs and expenses incurred in the preparation and service of notices of Default and consultations in connection therewith . . . .

(Larson Decl., Ex. A at ¶ 31 [emphases added].) The Lease defines "Parties" to include Lessor 9 Whatney, LLC and Lessee Mayrock Automotive, Inc. (Larson Decl., Ex. A at ¶ 1.1.) The Lease defines "Brokers" to include CBRE, Inc., Gregg Haly/Chip Write/Kelly Kayl, Pacific ProPartners, and Eric Yao. (Larson Decl., Ex. A at ¶ 1.9.)

Defendant Mayrock Inc., Defendant Plainview Management Corp., and Cross-Defendant Shaked are not parties to the 2022 Lease.

No later than nine (9) court days before the continued hearing, Moving Parties shall file and serve a supplemental brief that addresses: (1) Moving Parties' right to recover fees incurred to pursue claims against the nonsignatory defendants Mayrock Plainview Management Corp.; and/or (2) Cross-Defendant's right to recover reasonable attorney's fees. The supplemental brief be no more than five (5) pages in length.